

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

ALEX JEAN-PIERRE,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER JOHN GUERRA, Shield No. 1562,
DETECTIVE VARGHESE, SERGEANT RAJINDER
SINGH, SERGEANT JASMIN, and POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Kings
County as the place of trial.

----- X

To the above named Defendants:

You are hereby summoned to Answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 28, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER JOHN GUERRA, Shield No. 1562, 67th Precinct, 2820 Snyder Avenue, Brooklyn, New York 11226
DETECTIVE VARGHESE, 67th Precinct Detective Squad, 2820 Snyder Avenue, Brooklyn, New York 11226

SERGEANT RAJINDER SINGH, 67th Precinct, 2820 Snyder Avenue, Brooklyn, New York 11226

SERGEANT JASMIN, 67th Precinct Detective Squad, 2820 Snyder Avenue, Brooklyn, New York 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

ALEX JEAN-PIERRE,

Plaintiff,

-against-

POLICE OFFICER JOHN GUERRA, Shield No. 1562,
DETECTIVE VARGHESE, SERGEANT RAJINDER
SINGH, SERGEANT JASMIN, and POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff ALEX JEAN-PIERRE, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 28, 2015, at approximately 8:00 p.m., plaintiff Alex Jean-Pierre was lawfully present in the lobby of 3501 Foster Avenue, Brooklyn, New York and was about to exit the building when defendants, including but not limited to Police Officer John Guerra, Shield No. 1562, and Sergeant Rajinder Singh subjected plaintiff to an unconstitutional stop, question, frisk, search, seizure, and false arrest/ imprisonment. Thereafter, plaintiff was transported by defendants against his will to the 67th Precinct whereat he was unlawfully searched, fingerprinted, photographed, detained in a filthy holding cell for many hours and interrogated by defendants Detective Varghese and Sergeant Jasmin about a robbery that occurred on July 25, 2015 at the location where he was arrested which he did not commit and knew nothing about. Although plaintiff could not provide defendants with any information about the robbery, upon information and belief Detective Varghese activated an I-Card for plaintiff that falsely identified plaintiff as a witness to the robbery that Detective Varghese wanted to speak with. Defendants maliciously prosecuted plaintiff and denied plaintiff the right to a fair trial by providing the Kings County District Attorney's Office with false, misleading and incomplete evidence regarding their basis for arresting and prosecuting plaintiff. Plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued. On July 29, 2015 at approximately 8:00 plaintiff was arraigned in Kings County Criminal Court and charged with committing crimes he did not commit and that the defendants lacked probable cause to accuse him of committing.

Specifically, defendants unlawfully charged plaintiff with Criminal Trespass in direct violation of two standing Orders by a Federal Judge ordering NYPD officers to stop arresting and prosecuting people for Criminal Trespass in fact patterns such as the one presented by plaintiff in this case. Additionally, the defendants unlawfully charged plaintiff with criminal possession of a weapon despite the fact that the pocket knife plaintiff was carrying at the time of his arrest was completely legal to carry, even according to the officers' own description of the knife. Plaintiff was released on his own recognizance at arraignment and ordered to return top Criminal Court on September 8, 2015.

2. On September 7, 2015 at approximately 1:00 pm an NYPD officer ran plaintiff's name to see whether he had any outstanding warrants and saw the I-Card naming plaintiff as a witness to the robbery that Detective Varghese issued. Plaintiff was falsely arrested again for allegedly having some involvement in the robbery and was transported to the 67th Precinct Detective Squad to speak with Detective Varghese. Detective Varghese did not acknowledge that he had already arrested and interrogated plaintiff about the robbery on July 28, 2015 and forced plaintiff to unlawfully endure an almost identical interrogation as the one Detective Varghese conducted on July 28, 2015. Detective Varghese unlawfully required plaintiff to stand in a line-up to see whether the robbery victim could identify him as the perpetrator. The robbery victim did not identify plaintiff as the perpetrator of the robbery, and on September 8, 2015 at approximately 1:00 pm plaintiff was released from custody.

3. However, the false arrest and unlawful seizure of plaintiff on September 7, 2015 through September 8, 2015 caused plaintiff to miss the appearance he was required to attend in Kings County Criminal Court for the criminal prosecution stemming from the July 28, 2015 arrest. Fortunately, plaintiff's criminal attorney was able to convince the judge not to issue a bench warrant for plaintiff's arrest because he failed to appear for the court date. All criminal charges brought against plaintiff were dismissed and sealed in their entirety on March 7, 2016. .

4. On July 28, 2015 plaintiff was working two jobs full time and was fired from both jobs because he was falsely arrested/ imprisoned and maliciously prosecuted and was unable to obtain new employment while the prosecution against him was pending. With not income plaintiff could not pay his rent and was forced to move out of his one bedroom apartment where he lived alone, and into a single room in an apartment already occupied by three tenants he did not know or fell safe living with. Plaintiff lost approximately \$81,600 in income because he was falsely arrested by the defendants. Defendants deprived plaintiff of his constitutional and common law rights when the individual defendants unlawfully stopped, searched, confined, falsely arrested, maliciously prosecuted, denied plaintiff the right to due process on July 28, 2015 and September 7, 2015, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

5. Plaintiff ALEX JEAN-PIERRE is a resident of the state of New York.

6. POLICE OFFICER JOHN GUERRA, Shield No. 1562, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER JOHN GUERRA, Shield No. 1562, is and was at all times relevant herein, assigned to the 67th Precinct.

8. POLICE OFFICER JOHN GUERRA, Shield No. 1562, is being sued in his individual and official capacity.

9. DETECTIVE VARGHESE is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. DETECTIVE VARGHESE is and was at all times relevant herein, assigned to the 67th Precinct Detective Squad.

11. DETECTIVE VARGHESE is being sued in his individual and official capacity.

12. SERGEANT RAJINDER SINGH is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. SERGEANT RAJINDER SINGH is and was at all times relevant herein, assigned to the 67th Precinct.

14. SERGEANT RAJINDER SINGH is being sued in his individual and official capacity.

15. SERGEANT JASMIN is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. SERGEANT JASMIN is and was at all times relevant herein, assigned to the 67th Precinct Detective Squad.

17. SERGEANT JASMIN is being sued in his individual and official capacity.

18. New York City Police Officers John Does numbers one through ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Police Officers John Does numbers one through ten are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New

York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

21. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. By way of background, on July 25, 2015 at approximately 1:00 pm an individual was the victim of a violent robbery at 3503 Foster Avenue, Brooklyn New York.

25. The robbery was immediately reported to the NYPD, but the perpetrator was not apprehended that day.

26. Upon information and belief, defendant Detective Varghese was assigned to investigate the robbery.

27. The NYPD increased the number of police officers patrolling the complex of buildings where the robbery occurred and police officers were ordered to look out for individuals who matched the description of the robbery suspect.

28. On July 28, 2015 plaintiff lawfully visited his friend at his apartment located at 3501 Foster Avenue, Brooklyn, New York.

29. AT approximately 8:00 pm on July 28, 2015 plaintiff exited his friend's apartment and intended to travel home.

30. When plaintiff exited his friend's apartment defendant police officers were patrolling the apartment building and were especially on the look-out for the robbery suspect.

31. On July 28, 2015, at approximately 8:00 p.m., plaintiff Alex Jean-Pierre was lawfully present in the lobby of 3501 Foster Avenue, Brooklyn, New York and was about to exit the building when defendants, including but not limited to Police Officer John Guerra, Shield No. 1562, and Sergeant Rajinder Singh subjected plaintiff to an unconstitutional stop, question, frisk, search, seizure, and false arrest/ imprisonment.

32. At no point in time was plaintiff committing any crime, nor would any reasonable police officer believe that plaintiff committed any crime.

33. Nevertheless, plaintiff was unlawfully handcuffed by defendants without legal justification or probable cause and the defendants advised plaintiff that they were arresting him because they believed he was the perpetrator of a violent robbery that occurred in the building complex a few days earlier.

34. Thereafter, plaintiff was transported by defendants against his will to the 67th Precinct whereat he was unlawfully searched, fingerprinted, photographed, detained in a filthy holding cell for many hours.

35. At the 67th precinct, plaintiff was searched and placed in a holding cell.

36. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

37. Plaintiff was aggressively interrogated about the robbery by defendants Detective Varghese and Sergeant Jasmin about a robbery that occurred on July 25, 2015 in the building complex where he was arrested.

38. Plaintiff was unable to provide defendants with any useful information about the robbery because he was not the perpetrator and knew nothing about the robbery.

39. Defendants showed plaintiff photographs of the individuals the police believed committed the robbery, but plaintiff did not recognize any of the suspects.

40. Although plaintiff could not provide defendants with any information about the robbery, upon information and belief Detective Varghese activated an I-Card for plaintiff that falsely identified plaintiff as a witness to the robbery that Detective Varghese wanted to speak with.

41. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

42. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

43. Defendants maliciously prosecuted plaintiff and denied plaintiff the right to a fair trial by providing the Kings County District Attorney's Office with false, misleading and incomplete evidence regarding their basis for arresting and prosecuting plaintiff.

44. Plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued.

45. On July 29, 2015 at approximately 8:00 plaintiff was arraigned in Kings County Criminal Court and charged with committing crimes he did not commit and that the defendants lacked probable cause to accuse him of committing.

46. Specifically, defendants unlawfully charged plaintiff with Criminal Trespass in direct violation of two standing Orders by a Federal Judge ordering NYPD officers to stop arresting and prosecuting people for Criminal Trespass in fact patterns such as the one presented by plaintiff in this case.

47. The officers admit that they observed plaintiff in the lobby of 3501 Foster Avenue, Brooklyn, New York. The defendant officers admit that they stopped, questioned and frisked plaintiff in the lobby of the building for no reason other than the fact that he happened to be present inside the lobby of a FTAP building.

48. The officers also admit that when they questioned plaintiff he advised them that he was visiting a friend in the building, and defendants claim that they arrested plaintiff because they could not verify his reason for being in the building.

49. The officers' reason for arresting plaintiff and charging him with Criminal Trespass is not a lawful basis for arresting and prosecuting him. See Davis, et al. v. City of New York, 10 Civ. 699 (AT)(HBP) (SDNY) and Ligon, et al. v. City of New York, 12 Civ. 2274 (AT)(HBP) (SDNY).

50. In fact, in 2013 a Federal Judge ordered the City of New York and the NYPD to immediately stop making unlawful arrests in NYCHA and FTAP building based on facts similar to those relied upon by the officers in this case.

51. In Ligon v. City of New York, 2013 U.S. Dist. LEXIS 2871, 17 (S.D.N.Y. Jan. 8, 2013) the NYPD was ordered to amend its policies regarding trespass arrests in FTAP buildings and to retrain its officers regarding such arrests. Id.

52. Additionally, the defendants unlawfully charged plaintiff with criminal possession of a weapon despite the fact that the pocket knife plaintiff was carrying at the time of his arrest was completely legal to carry, even according to the officers' own description of the knife.

53. Plaintiff was released on his own recognizance at arraignment and ordered to return top Criminal Court on September 8, 2015.

54. On September 7, 2015 at approximately 1:00 pm an NYPD officer ran plaintiff's name to see whether he had any outstanding warrants and saw the I-Card that Detective Varghese issued naming plaintiff as a witness to the robbery.

55. Plaintiff was falsely arrested again on September 7, 2015 for allegedly having some involvement in the robbery and was transported to the 67th Precinct Detective Squad to speak with Detective Varghese.

56. Detective Varghese did not acknowledge that he had already arrested and interrogated plaintiff about the robbery on July 28, 2015 and forced plaintiff to unlawfully endure an almost identical interrogation as the one Detective Varghese conducted on July 28, 2015.

57. Detective Varghese unlawfully required plaintiff to stand in a line-up to see whether the robbery victim could identify him as the perpetrator. The robbery victim did not identify plaintiff as the perpetrator of the robbery, and on September 8, 2015 at approximately 1:00 pm plaintiff was released from custody.

58. However, the false arrest and unlawful seizure of plaintiff on September 7, 2015 through September 8, 2015 caused plaintiff to miss the appearance he was required to attend in Kings County Criminal Court for the criminal prosecution stemming from the July 28, 2015 arrest.

59. Fortunately, plaintiff's criminal attorney was able to convince the judge not to issue a bench warrant for plaintiff's arrest because he failed to appear for the court date. All criminal charges brought against plaintiff were dismissed and sealed in their entirety on March 7, 2016.

60. On July 28, 2015 plaintiff was working two jobs full time and was fired from both jobs because he was falsely arrested/ imprisoned and maliciously prosecuted and was unable to obtain new employment while the prosecution against him was pending.

61. With no income plaintiff could not pay his rent and was forced to move out of his one bedroom apartment where he lived alone, and into a single room in an apartment already occupied by three tenants he did not know and whom he felt unsafe living with.

62. Plaintiff lost approximately \$81,600 in income because he was falsely arrested by the defendants.

63. Defendants deprived plaintiff of his constitutional and common law rights when the individual defendants unlawfully stopped, searched, confined, falsely arrested, maliciously prosecuted, denied plaintiff the right to due process on July 28, 2015 and September 7, 2015, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

64. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search and seizure of plaintiff.

65. The unlawful search, false arrest, and false imprisonment, denial of a right to fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, unlawfully stopped, questioned and frisked, falsely arrested, falsely imprisoned, and maliciously prosecuted, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

68. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The acts and conduct of the defendants constitute two distinct false arrests and false imprisonments under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinements and the confinement was not otherwise privileged.

71. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

75. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

77. Defendants lacked probable cause to search plaintiff.

78. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

81. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Denial of Right to Fair Trial

82. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein

83. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

84. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

85. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

86. In withholding/creating false evidence against plaintiff Alex Jean-Pierre, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

87. As a result of the foregoing, plaintiff Alex Jean-Pierre, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Failure to Intervene

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

93. Defendants failed to intervene to prevent the unlawful conduct described herein.

94. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

95. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

97. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

98. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

99. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Alex Jean-Pierre demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 28, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 28, 2018

/s/
STUART E. JACOBS